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California becomes first state to ban ultraprocessed foods in school meals

October 8, 2025 | San Francisco Chronicle: Web Edition Articles (CA)
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OpenURL Link

California on Wednesday became the first state in the U.S. to ban ultra-processed food in school lunches — including soda, energy drinks and other foods high in sugar or salt and low in nutrients.

The new law, AB1264, signed by Gov. Gavin Newsom and authored by Assembly Member Jesse Gabriel, D-Encino, will define "particularly harmful" ultra-processed foods by 2028, require schools to begin phasing them out of breakfasts and lunches by 2029, and ban them altogether by 2035.

It is the latest effort by state lawmakers to reduce people's consumption of ultra-processed foods, or UPFs, which have been linked to higher risk of several cancers, obesity, type 2 diabetes, heart disease and early death. Newsom in January issued an executive order directing state agencies to recommend ways to limit the harms associated with UPFs.

"This first-in-the-nation law builds on that work to make sure every California student has access to healthy, delicious meals that help them thrive," Newsom said in a statement.

Ultra-processed foods are commercially produced foods that have ingredients not normally found in a typical home kitchen. They are often high in sugar, salt and trans fat, and they contain additives such as flavor enhancers, emulsifiers and colors.

The availability of UPFs and the amount of UPFs that Americans are buying and eating are on the rise. The proportion of U.S. adults' calorie intake that comes from UPFs has increased over the past 20 years, while the proportion that comes from minimally processed foods has decreased. About 53% of adults' calories and 62% of children's calories come from UPFs, according to federal health data.

Not all UPFs are considered unhealthy — commercially baked whole breads, low-sugar yogurt and low-sodium veggie burgers, for instance, have some nutritional value — but the vast majority likely are.

UPFs are engineered to be highly palatable, often leading to the propensity to overeat. Studies show that when people have unlimited access to UPFs or unprocessed foods that were matched in nutrient content, people who ate UPFs ate more calories, carbohydrates and fat and gained more weight.

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- **Citation (apa Style)**
  Ho, C. (2025, October 8). California becomes first state to ban ultraprocessed foods in school meals.*San Francisco Chronicle: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1A39BD7AEF4E84F8.